

CHAPTER 63.

An Act to amend the National Insurance (Part II.) (Munition Workers) Act, 1916, and to amend the National Insurance (Unemployment) Acts, 1911 to 1916, with respect to the proportion to be borne by the amount of unemployment benefit to the number of contributions paid. [6th February 1918.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :

Power to
exclude trades
from operation
of 6 & 7 Geo. 5.
c. 20.

1.—(1) The Minister of Labour may by Order direct that any trade or any branch of any trade, mentioned in the First Schedule to the National Insurance (Part II.) (Munition Workers) Act, 1916 (which Schedule sets out the trades to which, by that Act, the provisions of the National Insurance Act, 1911, as amended by subsequent enactments, are temporarily extended), shall be excluded from that Schedule, and accordingly section one of that Act shall have effect as though after the words "the First Schedule to this Act" there were inserted the words "except in cases where the trade, or any branch thereof, is excluded by order of the Minister of Labour."

(2) An order under this section affecting any trade or branch of a trade shall not be made unless the Minister of Labour is satisfied that, having regard to the prospects of unemployment in that trade or branch at the end of the war, and to all the circumstances of the case, it is desirable to make an order.

(3) Where an order has been made under this section, any workman and the employer of any workman shall, on making an application to the Minister of Labour for the purpose, within six months after the making of the order, and on satisfying the Minister—

(a) that the number of contributions paid in respect of that workman are less than ten ; and

(b) that by reason of the order the workman has ceased to be employed in an insured trade ;

be entitled to have repaid to him out of the Unemployment Fund the amount of the contributions paid by the workman, or by the employer in respect of the workman (as the case may be), whilst the workman was employed in any trade or branch of a trade excluded by the order, after deducting (in the case of a workman) the amount of the unemployment benefit, if any, which he may have received ; but if at any time after such repayment the workman becomes entitled to unemployment benefit he shall be treated as if no contributions had been paid in respect of him whilst employed in such trade or branch of a trade.